

Department Of Probation (39)

The Department of Probation, which includes the Bureau of Family Justice, Bureau of Criminal Investigation and Case Processing, Criminal Operations Bureau, Bureau of Juvenile and Youth Justice, Bureau of Administrative Services, and Bureau of Planning and Staff Development, is mandated under the New York Consolidated Laws - Executive. In order to be eligible for State aid the Department is required to operate under the following New York State Laws and State Codes, Rules and Regulations:

Programs and Services

Terms of State aid for Probation Services

Each County shall maintain or provide for a probation agency or agencies to perform probation services therein, including intake, investigation, pre-sentence reports, supervision, conciliation, social treatment and such other functions as are assigned to probation agencies pursuant to law.

Family Court Order of Protection

PINS Probation

Services for Juvenile Delinquents

Providing information to Child Protection Services

Probation personnel; qualifications and duties

Probation administrative fee

Physical mental and psychiatric examinations

Staff training

Sex Offender Registry Act.

Certificate of Relief

DNA

Investigations and Reports

State Law or Regulations

NY Exec Law Article 12-246; 9 NYCRR Part 345

NYS Exec Law Article 12-A 256

NYS Criminal Procedure Law (CPL), Articles 390, 400, 410

9 NYCRR Parts 350, 351, 353, 354

NY Family Court Act (FCA), Article 9

FCA Section 812(1), 842

9 NYCRR Parts 350, 351, 353, 354, 357, FCA Article 7

9 NYCRR Part 356; FCA Article 3

NYS Exec Law Article 12-A 256a

NYS Exec Law Article 12-A 257

NYS Exec Law Article 12-A 257c

NYS Exec Law Article 12-A 258.

2.30 CPL; 9 NYCRR Part 346

NYS Correction Law 6-C

NYS Correction Law Article 23

9 NYCRR Part 995-C

9 NYCRR Part 351; CPL 390.20; 390.30; FCA

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Programs and Services

Supervision

Restitution Law

ATI Service Plan

Ignition Interlock Device

Interim Supervision

Inter/Intrastate Transfer

Probation Violation Rule

Leandra's Law

Raise the Age Reform

State Law or Regulations

9 NYCRR Part 351, CPL Article 410; FCA Part 5 353.2

420.10 CPL

NY Exec Law Article 13-A

VTL 1198

CPL 390.30 (6)

9 NYCRR Part 349

CPL Article 410

VTL 1192 (2) (b); VTL 1198

CPL Article 722; 9 NYCRR Part 359

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PROGRAM AREA AND SERVICES:

PUBLIC HEALTH & SAFETY

- ✓ Adult Pre-Sentence Investigations
- ✓ Adult Pre- and Post-Sentence supervision
- ✓ Warrant Execution and Fugitive Apprehension for probation violators
- ✓ DNA Testing and Probationer Compliance
- ✓ Sex Offender Registration and Address Verification of Probationers
- ✓ County monitoring agency for Leandra's Law
- ✓ DWI Ignition Interlock Program
- ✓ Electronic Home Monitoring
- ✓ Interstate Fingerprinting
- ✓ Risk/Need Instruments in Family and Criminal Courts
- ✓ Promote specialized Conditions of Probation as to restitution, ignition interlock, DWI, sex offenders, batterers, mental health and gang behavior to ensure offender accountability
- ✓ Sex Offender intensive supervision
- ✓ Sex Offender Halloween Victim Impact Panel
- ✓ Sex Offender Polygraphs
- ✓ Psycho-sexual Clinical Evaluations of Sex Offenders
- ✓ Enhanced Pre-Sentence Sex Offender Investigations
- ✓ Gang intervention through the High Impact Unit
- ✓ Interagency Gang Round Table Discussions
- ✓ Field Intelligence Supervising Probation Officer
- ✓ Specialized Mental Health Unit
- ✓ On-site and virtual Sex Offender Treatment with Probation Officers as co-facilitators
- ✓ Direct Treatment Alternative to Incarceration (DTATI). Probation Officers embedded in community based drug treatment programs to address the probationer's clinical needs
- ✓ Providing the courts with alternative-to-incarceration programs in specific priority areas that maximize the effectiveness of non-institutional supervision of criminal offenders (Criminal Court)
- ✓ DWI Intensive Supervision Units and Nightwatch Operations
- ✓ Drug Testing (Adult)
- ✓ Community Service (Adult)
- ✓ Restitution/Administrative Fee Collection
- ✓ Accounting Services
- ✓ Administration of County Criminal Justice Grants/Grant Management
- ✓ Develop and maintain staff development program utilizing best practices
- ✓ Provide programmatic data and statistical information to state agencies, local governments and NGOs
- ✓ Young Offender Unit for emerging adults
- ✓ Evidence Based Programming
- ✓ Forensic computer program for sex offenders with the court
- ✓ Protocol to respond to shots fired in Mt. Vernon and Yonkers through GIVE initiative
- ✓ Custom notifications for high risk probationers
- ✓ Full participation in the NYS DCJS Gun Involved Violence Elimination (GIVE) Partnership
- ✓ Operate DWI Victim Impact Panels in conjunction with STOP-DWI and MADD
- ✓ Participation with the Family Justice Center Taskforce and the Anti-Human Trafficking Taskforce
- ✓ Continuous Alcohol Monitoring Initiative
- ✓ Collaborate with County Police Real Time reporting center

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- ✓ Cognitive Lifeskills Group
- ✓ Public Education and Awareness Campaigns - Presentations to Schools/Civic Groups/Professional Associations
- ✓ Non-traditional work hour home/employment/community visits and surveillance (Family and Criminal Courts)
- ✓ Assisting victims of crime through supportive victim resource services; assistance in the preparation of Victim Impact Statements to be attached to the pre-sentence investigation, statements to be read to the Court at sentencing, a safety plan for victims of Domestic Violence, treatment/counseling referrals and collecting court-ordered restitution from probationers (Criminal Court)
- ✓ Providing probation services efficiently and in a cost- effective manner (Administrative Support)
- ✓ Warrant sweeps on a variety of Criminal Court cases including but not limited to Sex Offenders, Batterers, and DWI Probationers
- ✓ Web based Warrant Watch in collaboration with the County Department of Public Safety
- ✓ Accompany victims to Court and conduct home outreach when appropriate
- ✓ Inform Courts that restitution should be a consideration for sentencing
- ✓ Enforce restitution orders, collect and disburse restitution payments to victims
- ✓ On-site cognitive behavioral program for Domestic Violence offenders
- ✓ Intensive supervision of sentenced batterers
- ✓ Specialized Pre-Sentence Domestic Violence Investigations
- ✓ Polygraph examinations for domestic violence offenders
- ✓ Family Court Adult Intake for Domestic Violence offenses
- ✓ Membership and participation in Westchester County Domestic Violence Council.

- ✓ Enhanced drug testing at all DTATI sites to ensure accurate results and provide the necessary interventions
- ✓ Participation in Domestic Violence High Risk Team (DVHRT)
- ✓ NARCAN response initiative to provide training and NARCAN to at risk probationer's household members
- ✓ Enhanced PSI for gang and gun involved cases
- ✓ True Narc handheld narcotics analyzer used in the field
- ✓ Threat assessment management team

CHILDREN & FAMILY SERVICES

- ✓ PINS & JD Intake
- ✓ PINS & JD Diversion Supervision
- ✓ PINS & JD Probation Supervision
- ✓ PINS & JD Pre-dispositional Investigations
- ✓ Juvenile Community Service
- ✓ Juvenile Sex Offender Officers
- ✓ Juvenile Fire Setting Intervention
- ✓ Juvenile Drug Testing
- ✓ Juvenile Sex Offender Assessment and Treatment
- ✓ Juvenile Sex Offender Polygraphs
- ✓ Enhanced High-Risk Juvenile Supervision
- ✓ Adolescent and Juvenile Offender Voluntary Case Planning and Assessments
- ✓ Adolescent Offender and Juvenile Offender Supervision/Interim Supervision
- ✓ Adolescent and Juvenile Offender Pre-Sentence Investigations/ Reports
- ✓ Youth Part Pre-Trial Services for Adolescent Offenders
- ✓ Youth Part for Adolescent Offenders

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- ✓ Raise the Age Supervision Units
- ✓ Adult Intake Service
- ✓ Guardianship Investigations
- ✓ Juvenile Groups
- ✓ Adoption Investigations
- ✓ Restitution Collection
- ✓ Custody/Visitation Investigation
- ✓ Cross Services Unit (CSU) in Yonkers, New Rochelle and White Plains with Department of Social Services and Department of Community Mental Health (Family Court)
- ✓ Probation is the designee of the NYS OCFS Supervision and Treatment Services for Juvenile Programs (STSJP). The Probation plan accounts for the WCJS-Linkages program to conduct assessment and referrals for juvenile delinquents and for enhancing supervision of the Juvenile Accountability program
- ✓ Three Disproportionate Minority Response (DMR) caseloads in Juvenile Delinquency Intake diversion
- ✓ Participation in the County's Disproportionate Minority Contact Initiative (Federal Mandate)
- ✓ Family Court Probation/Police Collaboration
- ✓ Youth Justice Equity Team Member

DETENTION

- ✓ Secure/Specialized Detention
- ✓ Non-Secure Detention

DEPARTMENT INITIATIVES:

NEW

- ✓ Enhanced PSI for gang and gun involved cases
- ✓ True Narc handheld narcotics analyzer used in the field
- ✓ Lexington Center onsite treatment for juveniles

- ✓ Joined Threat Assessment Management Team (TAM)
- ✓ Joined the Gun Violence Prevention Taskforce
- ✓ Peekskill Drug Court
- ✓ Collaboration with Bravehearts Move New York
- ✓ College recruitment and job fair participation
- ✓ K-9 Unit established (Electronic Storage Detection)

ON-GOING

- ✓ Chair and serve as the lead agency for the Mid-Hudson Regional Youth Justice Team and Westchester County's Criminal Justice Advisory Board
- ✓ Participation in New York State, Division of Criminal Justice, Mid-Hudson Sexual Orientation Gender Identity and Expression (SOGIE) meetings
- ✓ Partner with STOP DWI
- ✓ Designated Field Intelligence Supervising Probation Officer, Probation Officer to coordinate and strategize with various agencies in furtherance of community safety
- ✓ Continue strategies to reduce the reliance on detention & out of home placement which results in significant tax levy savings (Family Court)
- ✓ Continued training in Actuarial Risk Need Instrument for Family and Criminal Courts
- ✓ Continue inter-agency referral protocols for status offenders (PINS) with Westchester County Department of Social Services and with the school systems
- ✓ Collaboration between County Agencies (Probation, Public Safety, Health, Community Mental Health, DSS and Law) to better serve the needs of Westchester County communities
- ✓ Collaboration and participation with the Federal, State, Local and New York City Police Intelligence to investigate and effect arrests of criminals targeted in their sweeps

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- ✓ Staff members sit on various NYS Office of Probation and Correctional Alternatives state-wide committees
- ✓ Success of the County ATI Programs in the reduction of DOC costs
- ✓ County Monitoring Agency for Leandra's Law
- ✓ Continue to provide staff support for specialty courts
- ✓ Oversee all capital projects at Woodfield Cottage
- ✓ Respond to shots fired in Mount Vernon and Yonkers through the GIVE initiative
- ✓ Electronic reporting of Low Risk Offenders
- ✓ Expand training officers in the use of Cognitive Life Skills to increase access by probationers
- ✓ Member of the Northern Westchester Risk Reduction Team for high lethality potential domestic violence cases
- ✓ Lead agency for Raise the Age in Westchester County and responsible to ensure the successful submission of the Westchester County Raise the Age Fiscal Planning Instrument
- ✓ Continue trauma training for all staff
- ✓ Gang intelligence-gathering roundtable
- ✓ Utilization of risk needs assessment tools (i.e. YASI, MAYSI-2, COMPAS, RIT)
- ✓ Custom notifications (last chance warnings) to “top shooters” (most dangerous) through GIVE grant
- ✓ Oversight of pre-trial services provider
- ✓ Pre-trial and voluntary case planning in the Youth Part for adolescent offenders
- ✓ Implementation of agility testing/physical requirements to officer hiring process
- ✓ Electronic monitoring for select Criminal Court cases as part of bail reform through CHOICE
- ✓ Electronic monitoring by probation staff on court-ordered select Criminal and Family Probation Cases
- ✓ Supervision and treatment program specific to opioid involved offenders
- ✓ Participation in Opportunity Youth Part in New Rochelle and Mount Vernon
- ✓ Probation department continuing as the lead agency for the DCJS initiative aimed at reducing disproportionate racial impact during the adjustment stage in Family Court
- ✓ Family Court participation in the Westchester Child Welfare Court Improvement Project
- ✓ Participation in the DCJS-sponsored Policy Equity Training Academy
- ✓ Continued COVID-19 health and safety protocols in the office and the field for the protection of the staff and members of the public
- ✓ In-person facilitation of the DWI Victim Impact Panel (VIP) in both English and Spanish
- ✓ Continued study in the Family Court Bureau to assess how demographic information may lead to key decisions affected by implicit bias
- ✓ Continued to provide training in both virtual and in-person formats
- ✓ Continued participation in District Attorney's DWI six-month interim supervision pilot program
- ✓ Participate in the Children's Cabinet
- ✓ Peer support team run by officers for officers
- ✓ Provided unpaid semestered Internship programming for college students interested in the Criminal Justice Field
- ✓ Collaborate with local police departments and community partners by participating in National Night Out, which enhances the relationship between the community and law enforcement
- ✓ Expanding partnership with the Westchester Rockland Guardians Association to provide mentoring for high risk probationers.
- ✓ Begin construction of new juvenile secure detention facility.
- ✓ Collaborating with Westchester County Department of Corrections, sharing intel on probationer-involved jail incidents

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- ✓ Continued the Career Closet at all Probation District offices to provide professional attire to probationers seeking employment
- ✓ DWI Surveillance Training
- ✓ Continued collaboration with YWCA Strive Program

DEPARTMENT ACCOMPLISHMENTS:

NEW

- ✓ Promoted one Assistant Commissioner to Deputy Commissioner
- ✓ Promoted one Supervising Probation Officer to Assistant Commissioner
- ✓ Promoted one Probation Officers to the title of Supervising Probation Officer
- ✓ Hired one Office Assistant
- ✓ Hired 18 Probation Officer Trainees 14 of whom are Spanish Speaking
- ✓ Awarded \$353,700 for the Gun Involved Violence Elimination (GIVE) Grant
- ✓ Successfully completed 17-week regional New Officer Training Academy
- ✓ Certified two department SOGIE instructors, one master instructor, one implicit bias instructor, and three OPCA anchor trainers
- ✓ Facilitated DCJS Instructor Development Course (IDC), providing training and certification
- ✓ Hosted week-long, National Crime Victims Week event, including training, donation drive, and presentations by community partners and domestic violence victim
- ✓ Initiative with Westchester Community College and Westchester Southern BOCES to bring educational and vocational training to probationers

REVENUES:

- ✓ STOP DWI Funds for Off-Hour Surveillance, Residents Checks, and Community Outreach

- ✓ Departmental Revenues are derived from those probationers who are ordered to pay DWI Administrative fees and/or restitution surcharges.
- ✓ State Aid reimbursement through a Block Grant
- ✓ Reimbursement for RTA related expenditures and for Non Secure Detention, Secure Detention and Specialized Secure Detention for both in-county and out-of-county youth placed in detention by the Court
- ✓ State/Federal/Local Aid for specific grant programs and demonstration projects. These programs are budgeted separately in Trusts and Grants

SERVICE INDICATORS:

	2023 Actual	2024 Estimated	2025 Planned
Preliminary Procedure:			
Total Intake	2,901	3,020	3,020
Adult Intake - Total Petitions			
Family Offense	2,490	1,526	1,526
Custody/Visitation	2,057	1,481	1,481
Support/Paternity	352	100	100
	81	2	2
Juvenile Intake			
Juvenile Delinquent	757	835	835
Persons in Need of Supervision	524	602	602
	233	233	233

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	2023 Actual	2024 Estimated	2025 Planned
Investigation and Reports:			
County Court-Felony Conviction	715	797	797
Magistrate's Courts (City, Village, Town)	813	873	873
Victim Services	230	187	187
Family Court:			
Custody/Visitation/Adoption	248	178	178
J.D. Pre-disposition	75	120	120
Persons in Need Supervision	9	7	7
Supplemental Reports (written JD/PINS)	62	137	137
Supervision:			
County Court-Felony Conviction	1,923	2,035	2,035
Magistrate's Courts (City, Village, Town)	2,762	3,001	3,001
JD and PINS	740	800	800
CD/Ignition Interlock	1,758	1,268	1,268
Collections and Disbursements:			
Fines	\$123	\$200	\$200
Restitution for Victims	\$212,107	\$197,988	\$250,000
Restitution/Surcharges	\$11,856	\$11,752	\$18,000
Penalty Assessments	\$0	\$50	\$50
Total:	\$224,086	\$209,990	\$268,250

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Account Class	Account Rollup Name	Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
100 Annual Regular Salaries	1010 Net-Annual Regular	17,206,731	19,429,344	19,429,344	18,229,345	20,308,506	19,388,506
		17,206,731	19,429,344	19,429,344	18,229,345	20,308,506	19,388,506
101 Other Personal Services	1400 Overtime	317,968	415,300	415,300	410,300	415,300	415,300
		317,968	415,300	415,300	410,300	415,300	415,300
200 Equipment	2300 Replacement	176,455	23,615	72,215	23,615	68,200	68,200
	2400 Additional	14,019	61,452	61,910	82,452	46,630	46,630
		190,475	85,067	134,125	106,067	114,830	114,830
300 Material & Supplies	3010 Automotive Supplies	25,981	30,000	30,000	30,000	30,000	30,000
	3070 Book and Periodicals	0	2,000	2,000	1,700	2,000	2,000
	3180 Water Service	11,889	17,500	17,500	17,500	17,500	17,500
	3240 General Supplies	86,034	124,139	185,185	155,139	42,296	42,296
	3530 Medical/Dental/Lab Supp	62,113	83,000	68,000	81,000	84,000	84,000
	3600 Printing & Office Suppl	45,136	34,499	36,659	37,499	38,712	38,712
	3700 Postage Costs	11,256	13,900	13,900	13,900	13,900	13,900
	3998 Emergency Supplies	0	0	150	0	0	0
		242,410	305,038	353,395	336,738	228,408	228,408
400 Expenses	4070 Equip Service & Rental	15,897	32,500	32,934	32,500	30,500	30,500
	4100 Membership Fees	635	6,500	6,500	7,250	8,500	8,500
	4110 Travel and Meals	7,321	11,250	11,250	14,250	11,500	11,500
	4130 Electronic Home Device	80,016	87,600	100,051	87,600	87,600	87,600
	4160 Telephone Expenses	56,348	70,000	70,000	70,000	72,190	72,190
	4200 Repair & Maintenance	282,244	370,000	596,601	546,000	575,000	370,000
	4280 Insurance	0	5,600	5,600	5,600	5,600	5,600
	4310 Non-recurring Repairs	1,974,439	3,000,000	3,000,051	110,000	3,000,000	3,000,000
	4360 Educational Training	74,016	103,690	103,690	103,690	105,190	105,190
	4380 Contractual Services	15,948,935	20,064,423	20,052,278	20,064,423	21,226,754	16,569,429
	4446 Temp Personnel Staffing	18,614	20,000	20,000	15,000	20,000	20,000
	4944 Pre-Trial Services	446,383	600,000	600,000	500,000	600,000	600,000
		18,904,849	24,371,563	24,598,955	21,556,313	25,742,834	20,880,509

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Account Class	Account Rollup Name	Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
599 Inter-Departmental Charge	5147 Svc by Personnel	3,813	3,688	3,688	3,688	6,965	6,965
	5205 Information Support Svc	2,428,787	2,534,085	2,534,085	2,534,085	2,672,600	2,515,040
	5280 Svc by Public Works	2,017,268	2,052,771	2,052,771	2,052,771	2,227,730	2,168,849
	5325 Svc by Dept of Law	83,685	119,371	119,371	119,371	108,409	106,042
	5390 Svc by Public Safety	377,328	379,648	379,648	379,648	423,321	423,321
		4,910,881	5,089,563	5,089,563	5,089,563	5,439,025	5,220,217
Total Expenditures		41,773,313	49,695,875	50,020,682	45,728,326	52,248,903	46,247,770
Net Expenditures		41,773,313	49,695,875	50,020,682	45,728,326	52,248,903	46,247,770
50 Departmental Income		1,078,254	427,000	427,000	652,000	697,314	697,314
61 Agency & Trust Revenue		2,760	0	0	2,525	0	0
90 Interfund Revenue		45,087	0	0	0	0	0
97 State Aid		21,921,479	23,714,062	23,714,062	23,714,062	24,599,763	21,729,950
Total Revenues		23,047,580	24,141,062	24,141,062	24,368,587	25,297,077	22,427,264
Net Department Total		18,725,733	25,554,813	25,879,620	21,359,739	26,951,826	23,820,506